

STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

Case No. 2023-5907-PP
Hon. Jenny L. McNeill

EMILY A. WATSON,

Petitioner,

v.

ANDREW JAMES PIGORS,

Respondent.

FILING CHECKLIST — Phase 1: Disqualification Package
14TH CIRCUIT COURT, MUSKEGON COUNTY, FAMILY DIVISION

DOCUMENTS IN THIS PACKAGE

#	Document	Pages (est.)	Status
1	Motion to Disqualify Judge McNeill (MCR 2.003)	~12	PDF Ready
2	Affidavit of Disqualification (MCR 2.003(B)/(D)(1))	~5	PDF Ready
3	Proposed Order Granting Disqualification	~2	In MSC Fleet
4	MC 20 Fee Waiver Application	2	■ FILL + SIGN
5	Certificate of Service	~1	In motion
6	Exhibit Bundle (see below)	~30	Generated

EXHIBIT BUNDLE

Exhibit	Description	Source
A	Interference Incident Log (751 incidents)	U-001
B	Show Cause History (7 proceedings)	U-005
C	Parenting Time Denial Calendar (229+ days)	U-007
D	Ex Parte Order Log (49 orders)	U-013
E	Judicial Conduct Analysis (1,127 violations)	U-015
F	MCL 750.539 Wiretapping Analysis	U-021
G	MRE 901 Authentication Failure Analysis	U-022

PHYSICAL STEPS — DO IN THIS ORDER

STEP 1: PRINT (30 minutes)

- ☐ Print **3 copies** of the COMPLETE package (motion + affidavit + proposed order + all exhibits)
- Copy 1: **Court** (original, signed)
- Copy 2: **Emily Watson** (service copy)
- Copy 3: **Your records** (conformed copy)
- ☐ Print **1 copy** of MC 20 Fee Waiver (single copy for court)

STEP 2: SIGN (5 minutes)

- ☐ Sign the motion on the signature line (Andrew James Pigors)
- ☐ Sign the Certificate of Service
- ☐ Sign the MC 20 Fee Waiver
- ☐ **DO NOT sign the Affidavit yet** — must be signed IN FRONT of notary

STEP 3: NOTARIZE THE AFFIDAVIT (30-60 minutes)

- ☐ Take the unsigned Affidavit of Disqualification to a notary public
- **UPS Store** — 1891 E. Sherman Blvd, Muskegon (call first: 231-767-3775)
- **Your bank** — most banks offer free notary for customers
- **Muskegon County Clerk** — 990 Terrace St (same building as court)
- ☐ Sign the affidavit IN FRONT OF the notary
- ☐ Notary completes the jurat block (date, seal, commission expiry)
- ☐ Attach notarized affidavit to the court copy of the motion

STEP 4: FILE AT COURT (30 minutes)

- ☐ Drive to **14th Circuit Court, 990 Terrace Street, Muskegon, MI 49442**
- ☐ Go to the **Family Division Clerk's window**
- ☐ File the MC 20 Fee Waiver FIRST
- If fee waiver is **granted**: proceed to file motion for free
- If fee waiver is **denied**: filing fee is **\$20.00** (check, money order, or cash)
- ☐ File the complete disqualification package (motion + affidavit + exhibits + proposed order)
- ☐ Ask the clerk to:
- **Stamp "FILED"** on all 3 copies with the date
- **Return your conformed copy** (Copy 3 with filing date stamp)
- **Direct the motion to the Chief Judge** per MCR 2.003(D)(1)
- ☐ NOTE: Chief Judge Kenneth Hoopes is ALSO disqualified (shared law office with McNeill) — if he attempts to rule, object and cite MCR 2.003(D)(4) requiring SCAO to assign a visiting judge

STEP 5: SERVE EMILY WATSON (same day or next day)

- ☐ Serve Emily Watson at **2160 Garland Drive, Norton Shores, MI 49441**
- ☐ **Service methods (MCR 2.107(C)):**
- **OPTION A (preferred):** First-class mail + certificate of mailing at Post Office
- **OPTION B:** Personal delivery (hand to Emily or leave at door with adult)
- **OPTION C:** Email (if prior consent to electronic service exists)
- ☐ For mail service:
- Go to **USPS Post Office**
- Send by **first-class mail**
- Get a **Certificate of Mailing** (Form 3817) — costs ~\$1.75
- Keep the certificate — this IS your proof of service

STEP 6: FILE PROOF OF SERVICE (within 7 days)

- ☐ Complete the Certificate of Service (already in the motion)
 - ☐ Fill in: date served, method of service, address served to
 - ☐ File the proof of service with the court (can be mailed)
-

CRITICAL NOTES

MCR 2.003(D) PROCEDURE

The disqualification motion does NOT go to Judge McNeill. Under MCR 2.003(D)(1), it goes to the **Chief Judge**. However:

- **Chief Judge Kenneth Hoopes** shared a law office with McNeill in North Muskegon
- His wife **Maria Ladas Hoopes** is also a Muskegon County judge who evicted you
- Under MCR 2.003(D)(4), when the Chief Judge is also disqualified, **SCAO assigns a visiting judge**

- **Be prepared to file a supplemental affidavit** disqualifying Hoopes if he doesn't recuse sua sponte

TIMELINE

- The court has **no deadline to rule** on disqualification motions — follow up weekly
- If no ruling within 14 days, file a "Status Inquiry" with the clerk
- If Chief Judge rules against you, immediately appeal to Court of Appeals (MCR 7.203)

COST SUMMARY

Item	Cost
Filing fee (if MC 20 denied)	\$20.00
Notary	\$0-\$15 (free at many banks)
Printing (~50 pages × 3 copies)	~\$15 (library @ \$0.10/page)
Postage (service by mail)	~\$3.00
Certificate of mailing	~\$1.75
TOTAL (if fee waiver granted)	~\$20-\$35
TOTAL (if fee waiver denied)	~\$40-\$55

FILING CHECKLIST — Phase 2: Emergency Parenting Time Motion

DOCUMENTS

#	Document	Status
1	Emergency Motion to Restore Parenting Time	PDF Ready
2	Proposed Order (ex parte restoration + hearing)	In motion
3	MC 20 Fee Waiver (if not already granted)	■ FILL
4	Certificate of Service	In motion
5	Exhibit Bundle (overlaps Phase 1 + U-001)	Generated

TIMING

- File **48 hours after disqualification filing** (or sooner if visiting judge assigned)
- This motion requests **emergency/ex parte** relief — the judge CAN grant temporary PT restoration without waiting for a hearing
- Cite: 228+ days of separation, MCL 722.27a, 14th Amendment due process

PHYSICAL STEPS

Same as Phase 1: Print 3 copies → Sign → File → Serve → POS

- **Do NOT file with McNeill** — if visiting judge not yet assigned, ask clerk to hold until assignment

FILING CHECKLIST — Phase 3: COA Brief 366810

MICHIGAN COURT OF APPEALS

DOCKET NO. 366810

DEADLINE: APRIL 15, 2026 (32 DAYS FROM TODAY)

DOCUMENTS

#	Document	Status
1	Appellant's Brief (14,070 words)	Ready (5 items to fix)
2	Appendix (MCR 7.212(D))	■ BUILD
3	Word Count Certificate	■ GENERATE
4	MC 20 Fee Waiver (COA)	■ FILL
5	Proof of Service	■ IN BRIEF

5 PROCEDURAL ITEMS TO RESOLVE

1. ☐ Claim of Appeal filing date — check COA docket online or call clerk
2. ☐ Confirm all factual citations to lower court record (transcript page numbers)
3. ☐ Generate Word Count Certificate (14,070 words / 16,000 max)
4. ☐ Build appendix: register of actions, orders, pleadings, exhibit index
5. ☐ Format for TrueFiling upload (PDF, bookmarks, OCR text layer)

FILING METHOD: TRUEFILING (ELECTRONIC)

- ☐ Create TrueFiling account at <https://www.truefiling.com>
- ☐ Select **Michigan Court of Appeals**
- ☐ Upload brief PDF + appendix PDF
- ☐ Pay filing fee (\$375) or upload MC 20 fee waiver
- ☐ System auto-generates proof of filing + serves opposing party electronically

ALTERNATIVE: PHYSICAL FILING

- 5 copies to: Michigan Court of Appeals, 925 W. Ottawa St, Lansing, MI 48915
- Plus 1 copy served on Emily Watson

FILING CHECKLIST — Phase 4: PPO Dissolution + Contempt

(FILE AFTER VISITING JUDGE ASSIGNED)

- ☐ Print 3 copies of Motion to Dissolve PPO
- ☐ File at 14th Circuit (request hearing before visiting judge)
- ☐ Serve Emily Watson

- ☐ Print 3 copies of Contempt Motion
- ☐ File at 14th Circuit (request hearing before visiting judge)
- ☐ Serve Emily Watson

Court Clerk Requests (do this NOW — takes 2-4 weeks)

- ☐ Request certified copies of these 8 documents from 14th Circuit Clerk:
 1. All hearing transcripts from 2024-001507-DC (5+ hearings)
 2. All hearing transcripts from 2023-5907-PP
 3. \$250 bond order
 4. August 8, 2025 ex parte orders
 5. 2nd HealthWest evaluation orders
 6. Custody judgment/order
 7. SC#5 contempt sentence (Nov 15, 2024)
 8. SC#6/7 contempt sentence (Nov 26, 2025)
- ☐ **Cost: \$1.25 per page** — request page count estimate from clerk first
- ☐ File MC 20 to waive transcript costs if possible

FILING CHECKLIST — Phase 5: MSC Superintending Control

MICHIGAN SUPREME COURT

DEADLINE: APRIL 1, 2026 (18 DAYS FROM TODAY)

DOCUMENTS

#	Document	Status
1	Application for Leave to File Original Action	■ DRAFT

2	Complaint for Superintending Control (MCR 7.306)	■ IN FLEET
3	6 Proposed Orders (from MSC fleet)	Ready
4	Supporting Brief	■ ADAPT from COA brief
5	MC 20 Fee Waiver	■ FILL

FILING METHOD: PHYSICAL

- **13 copies** of everything (MSC requires 13)
- Mail or deliver to: Michigan Supreme Court, 925 W. Ottawa St, Lansing, MI 48915
- Filing fee: **\$375** or MC 20 fee waiver

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